Our ref. 23004627

11 March 2025

Administrative Review Tribunal - Brisbane Registry
By email only: *brisbane.registry@art.gov.au*

Mrs Vida Reid
By email only: *vida_reid@yahoo.com*

Dear Registrar and Mrs Reid

ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Commission (ART no. 2023/4494)

Request for a stay

We refer to Mrs Reid's request of 28 January 2025 to stay her application (and that of Forward Focussed Group [FFG]), seeking a review of the NDIS Commission's decision to issue a Banning Order under section 73ZN(2) of the *National Disability Insurance Scheme Act 2013* made on 20 December 2022.

At the outset and to avoid confusion, we confirm that we act for the NDIS Commission. The Commission is an independent government regulator who regulates the quality and safety of NDIS supports and services. In these proceedings, we do NOT act for the National Disability Insurance Agency (NDIA), who are the government agency that implements and manages the NDIS. For abundant clarity, the NDIA are NOT a party to these proceedings. We read the references in Mrs Reid's submissions to the NDIS and the NDIS Investigator as being references to the NDIA.

Following receipt of Mrs Reid's submissions, the Commission has made enquiries with the NDIA and has been informed that there is no current criminal investigation pertaining to Mrs Reid or to FFG. In light of this information, the Commission cannot agree to the stay requested by Mrs Reid, having regard to the Tribunal's objectives in section 9 of the *Administrative Review Tribunal Act 2024*.

We observe that Mrs Reid's recent stay request is made against the following recent procedural background to these proceedings:

A Directions hearing was held on **3 October 2024** before Deputy President Lazanas where Mrs Reid was represented by her newly appointed solicitors. The subsequent directions included for Mrs Reid and FFG to file and serve any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report before **24 October 2024** and for an interlocutory hearing to be listed on **25 November 2024**.

By letter dated 23 October 2024 addressed only to the Tribunal, Mrs Reid's legal representatives requested an extension to file submissions until **21 November 2024** on the basis that they had only "recently been engaged in relation to this matter and do not yet have a copy of the documents filed by the parties in the proceedings". Included in this correspondence was an email from Mrs Vida Reid (dated 7 October 2024) informing the Tribunal that she was no longer represented by her former legal representatives. This correspondence was shared with the Commissioner by the Tribunal on 28 October 2024.

By email dated 4 November 2024, Mrs Reid's legal representatives requested an extension until **14 December 2024** to lodge submissions requesting a stay on medical grounds.

A directions hearing was listed for **6 November 2024** (and then rescheduled by the Tribunal to **14 November 2024**) to consider the request for an extension. Deputy President McMillan made directions including for Mrs Reid and FFG to file and serve any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report before **13 December 2024** and for an interlocutory hearing to be listed no earlier than **10 February 2025**.

On **16 December 2024**, having not received any submissions, the Commissioner wrote to Mrs Reid's legal representatives and requested an update in relation to the proceedings. Mrs Reid's legal representatives responded later that day with a without prejudice letter to the Commissioner.

On **20 December 2024**, the Commissioner agreed with the proposal set out in the letter of 16 December 2024 and sent further emails on **6 and & 7 January 2025** with a view to progressing this application.

By letter dated **17 January 2025**, Mrs Reid's representatives confirmed that she intended to proceed with her stay application and that it would be lodged by **24 January 2025**. By email dated **21 January 2025**, the Commissioner confirmed that she would agree to the extension required to lodge the stay application (which had fallen due on 13 December 2024) on the basis that an explanation for the delay was set out in the submissions.

By letter dated **22 January 2025**, the Tribunal notified parties that an interlocutory hearing had been listed for **13 February 2025**.

By email dated **24 January 2025**, Mrs Reid's legal representatives informed the Tribunal and parties that they were no longer instructed to act for Mrs Reid.

By email dated **28 January 2025**, Mrs Reid (now self-represented) lodged an affidavit and stay submissions requesting a stay on the basis of anticipated criminal proceedings being lodged.

By email dated **3 February 2025**, the Commissioner acknowledged receipt of these submissions and recirculated them to the Tribunal (whose email address was incorrect in the email dated 28 January 2025) and to Mr Simon Reid, party to these proceedings.

By email dated **5 February 2025**, Mrs Reid alleged a breach of privacy and human rights following the email dated 3 February 2025. She also indicated that this was the formal response to her request to stay the proceedings. On the same day, Mr

Reid's legal representatives confirmed that he did not oppose Mrs Reid's stay application but wanted to proceed with his application.

By email on **12 February 2025**, we were notified that Mr Simon Reid was no longer legally represented.

On **13 February 2025**, the directions hearing was adjourned to enable the Tribunal to further consider Mrs Reid's privacy complaint.

Finally, we are cognisant that the Tribunal is investigating the breach of privacy complaint lodged by Mrs Reid (as set out above). In these circumstances, we have not forwarded a copy of this correspondence to the second applicant, Mr Simon Reid.

Please contact us if you would like to discuss.

Yours sincerely



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